

July 10, 2026
Dept. 9
Civil Tentative Rulings

1.	22CV1334	CHERYL BLY-CHESTER vs. EL DORADO COUNTY BOARD OF SUPERVISORS ET AL
DEMURRER TO 4 TH AMENDED COMPLAINT		

Defendant El Dorado County Board of Supervisors (“Defendant”) demurs to Plaintiff Cheryl Bly-Chester’s (“Plaintiff”) Fourth Amended Complaint (“FAC”).

The Court on February 18, 2026 issued its ruling (the “Ruling”) on the Demurrer to Third Amended Complaint which held:

1. First Cause of Action - Wrongful Termination in Violation of Public Policy: sustained demurrer without leave to amend.
2. Second Cause of Action - Retaliation in Violation of Labor Code Section 1102.5: demurrer overruled.
3. Third Cause of Action - Gender Discrimination, Based on Non-Conforming Gender Expression: sustained demurrer with leave to amend. The Court directed Plaintiff to clearly articulate the statutory basis for her claim to remove any technical defects and to ensure proper notice to Defendants.
4. Fourth Cause of Action - Disparate Treatment on the Basis of Gender Discrimination: sustained demurrer with leave to amend. The Court directed Plaintiff to clearly identify the statutory authority to ensure proper notice to Defendants.
5. Fifth Cause of Action - Due Process: sustained demurrer without leave to amend.
6. Sixth Cause of Action - Retaliation for Whistleblowing: sustained demurrer without leave to amend.
7. Seventh Cause of Action - Retaliation and Misappropriation of Public Funds per Section 424(A)(7) (In Violation of Government Code Section 815.6): sustained demurrer with leave to amend. The Court directed Plaintiff to identify the statutory basis of her claim to provide adequate notice to Defendants.
8. Eighth Cause of Action - County’s Disparate Treatment of a Volunteer in Violation of AB 1443: sustained demurrer with leave to amend.

The Demurrer is brought pursuant to Code of Civil Procedure section 430.10, subsection (e), on the grounds that the Third, Fourth, Seventh and Eighth Causes of Action in the FAC fail to state facts upon which a claim for relief may be granted.

1. Plaintiff’s Third, Fourth, and Seventh Causes of Action fail to set forth a statutory basis as required by the Government Code in order to bring the suit against Defendant, a public entity;

2. Facts alleged pursuant to Plaintiff's Eighth Cause of Action are insufficient to state a claim for gender harassment under FEHA, which requires severe or pervasive gender-based conduct sufficient to create an abusive working environment.

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 ("If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort").

Based on the Declaration of Carolee G. Kilduff, counsel attempted to meet and confer with Plaintiff prior to filing, but the dispute could not be resolved.

Standard of Review - Demurrer

A demurrer tests the sufficiency of a complaint by raising questions of law. *Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 20. In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Moore v. Conliffe*, 7 Cal.4th 634, 638; *Interinsurance Exchange v. Narula*, 33 Cal.App.4th 1140, 1143. The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. *Flynn v. Higham* (1983) 149 Cal.App.3d 677, 679.

Rodas v. Spiegel (2001) 87 Cal. App. 4th 513, 517.

Plaintiff's Third Cause of Action - Gender Discrimination, Based on Non-Conforming Gender Expression

The Ruling directed that Plaintiff's TAC failed to articulate a statutory basis for her claim and instead referenced California Fair Employment and Housing Law § 11031(i)(2), which does not exist. The Court ordered Plaintiff to clearly articulate the statutory basis for her claim to remove any technical defects and to ensure proper notice to Defendants. Despite this direction, Plaintiff failed to provide notice of the statutory basis for her claim. Instead, Plaintiff repeats the entirety of her Third Cause of Action in the TAC, including a code section that this Court has stated does not exist, and added additional factual information that does not provide a statutory basis for her claim.

Plaintiff opposes the demurrer and asserts that the reference to California Fair Employment and Housing Law § 11031(i)(2) is a scrivener error which was supposed to reference Government Code § 12940(a). Plaintiff directs that she has established a basis for her Third Cause of Action under Government Code §§ 12940(a) and 815.6, as well as the County Charter.

Despite the Court unequivocally directing Plaintiff to provide the statutory basis for her claim, Plaintiff failed to do so in her FAC. Nevertheless, the demurrer is overruled to the Third Cause of Action. The Court on its own motion will amend the FAC by lineation. The Court shall strike "California Fair Employment and Housing Law § 11031(i)(2)" at FAC 26:21 and insert Government Code §§ 12940(a) and 815.6, as well as the County Charter. Plaintiff is to file a conformed copy of the amended FAC.

Fourth Cause of Action - Disparate Treatment on the Basis of Gender Discrimination

The Ruling directed that Plaintiff's TAC failed to articulate a statutory basis for her claim. The Court ordered Plaintiff to clearly articulate the statutory basis for her claim to ensure proper notice to Defendants. Like the Third Cause of Action, Plaintiff failed to provide notice of the statutory basis of her claim and instead repeated the entirety of the TAC's Fourth Cause of Action and included additional factual information.

Plaintiff opposes the demurrer and asserts she has established a statutory basis for her Fourth Cause of Action under Government Code § 12940(a), Government Code § 815.6 and the County Charter.

Despite the Court unequivocally directing Plaintiff to provide the statutory basis for her claim, Plaintiff failed to do so in her FAC. Nevertheless, the demurrer is overruled to the Fourth Cause of Action. The Court on its own motion will amend the FAC by lineation. The Court shall insert "in violation of Government Code § 12940(a), Government Code § 815.6, and the County Charter" at FAC 29:21. Plaintiff is to file a conformed copy of the amended FAC.

Seventh Cause of Action - Retaliation and Misappropriation of Public Funds per Section 424(A)(7) (In Violation of Government Code Section 815.6)

The Ruling directed that Plaintiff's TAC failed to articulate a statutory basis for her claim and explained that while Plaintiff points to Government Code § 815.6, she failed to clearly identify the mandatory duty being invoked. The Court ordered Plaintiff to clearly articulate the statutory basis for her claim to ensure proper notice to Defendants. Plaintiff's FAC fails to state the statutory basis for her claim. Again, the entirety of the TAC's Seventh Cause of Action is included along with additional factual information, but no statutory basis has been provided.

Plaintiff claims that Defendant retaliated against her for whistleblowing by not recognizing her statutorily deemed-approved permit to build her ADU designed to meet her disability needs. Plaintiff's opposition provides that by reporting County Counsel's Brown Act violations and the "threat" of an embarrassing hearing in writing, Plaintiff triggered the statutory protection of Labor Code § 1102.5 and accordingly has established a statutory basis under Labor Code § 1102.5, Government Code § 815.6, and the County Charter.

As previously directed by the Court, Government Code § 815.6 is insufficient to provide notice of the mandatory duty being invoked. A mandatory duty under Labor Code § 1102.5 arises from the obligation of public employers not to retaliate against employees for lawful whistleblowing disclosures. However, Government Code § 818.4 provides immunity for an injury caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, etc. Government Code § 820.2 provides immunity for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.

Despite the Court unequivocally directing Plaintiff to provide the statutory basis for her claim, Plaintiff failed to do so in her FAC. The demurrer is sustained to the Seventh Cause of Action without leave to amend, finding there is no reasonable possibility of curing the defect.

Eighth Cause of Action - County's Disparate Treatment of a Volunteer in Violation of AB 1443

The Ruling directed that the TAC did not provide details as to the nature of any alleged harassment pursuant to Government Code § 12940(j) and granted Plaintiff leave to amend.

Government Code section 12940(j)(1) expressly makes it unlawful for an employer, labor organization, employment agency, or any other person, because of a protected characteristic, to harass a volunteer. To prevail on a harassment claim under FEHA, a plaintiff must produce evidence they were **subjected to "offensive comments or other abusive conduct"** that is (1) **based on a "protected characteristic"...** and (2) **"sufficiently severe or pervasive as to alter the conditions of [his] employment."** (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 871, 172 Cal.Rptr.3d 732 (Serri).) To constitute harassment, **the conduct must be so objectively severe or pervasive as "to create a hostile or abusive working environment."** (*Id.* at p. 870,

172 Cal.Rptr.3d 732.) Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee's work performance. (*Ibid.*) *Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 736 [255 Cal.Rptr.3d 910, 923] (emphasis added).

Plaintiff asserts that she was harassed based upon her gender. Plaintiff asserts she suffered from a hostile work environment and provides examples in FAC ¶¶ 58, 60, 61, 65, 138, 140, 141, and 145. Plaintiff further asserts examples of abusive comments are in FAC ¶¶ 57, 59, 64, 68, 137, 139, 144, 148. The Legislature has declared that harassment cases are rarely appropriate for early disposition, affirming that issues in hostile environment cases are “not determinable on paper.” Government Code § 12923(e). Accordingly, the demurrer is overruled to the Eighth Cause of Action.

TENTATIVE RULING #1:

DEFENDANT’S DEMURRER IS OVERRULED AS TO FAC’S THIRD, FOURTH, AND EIGHTH CAUSE OF ACTION. DEFENDANT’S DEMURRER IS SUSTAINED WITHOUT LEAVE TO AMEND AS TO FAC’S SEVENTH CAUSE OF ACTION.

THE COURT ON ITS OWN MOTION WILL AMEND FAC’S THIRD AND FOURTH CAUSES OF ACTION AS DESCRIBED. PLAINTIFF IS ORDERED TO FILE A CONFORMED COPY OF THE AMENDED FAC.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.